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# Simon Fraser Announces Settlement, Apologizes to David Noble

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Simon Fraser University officials issued an apology July 25 over the handling of the appointment of the J.S. Woodsworth chair in 2001. [File Photo]

Simon Fraser University has acknowledged it made mistakes and expressed “sincere regret” to David Noble over actions surrounding his candidacy for the J.S. Woodsworth Chair in 2001.

The apology was part of an out of court settlement reached between SFU and the York University professor, who was denied the appointment six years ago despite overwhelming support by faculty.

“I’m pleased at the outcome, and that Simon Fraser has recognized the consequences of its actions,” Noble said.

According to a July 25 statement SFU released to the media, “The university recognizes that it made mistakes when applying its policies to Dr. Noble’s candidacy for the J.S. Woodsworth Chair. Given the complexity of the process for appointment to a university chair, the outcome of Dr. Noble’s candidacy, had these mistakes not been made, remains uncertain. However, the university acknowledges that the

mistakes it made had a personal impact on Dr. Noble.”

A search committee set up by SFU’s department of humanities in 2000 had recommended Noble, a distinguished historian of technology and society, as their first choice for the appointment.

Members of the search committee indicated Noble, as an activist and outspoken critic of university-corporate relations, was well suited to the post when evaluating his application. The appointee is expected to represent the values of J.S. Woodsworth, who was not uncritical of many institutions of his time.

In addition, Noble’s renowned work on the pitfalls of online and distance education was viewed by faculty as an advantage — a coherent critique deemed important to the debate at a time when SFU was actively pursuing these initiatives.

Despite the recommendation from the department, university officials blocked the appointment, and took a number of steps that Noble alleged made it apparent he was being denied the post because of his activism. This, he argued, was a breach of his academic freedom.

CAUT’s Academic Freedom and Tenure Committee agreed, and set up a committee of inquiry into the case to evaluate the fairness and impartiality of the appointment process and whether it had violated CAUT policy and Noble’s academic freedom.

The committee issued a damning report in 2003, determining that interventions by SFU administrators, particularly the dean of applied arts and the university president, had violated Noble’s academic freedom.

Their input, said the report, “imposed unreasonable requirements that concerned (Noble’s) style of engaging with academics and institutions he criticized. They may even have raised concerns about his professional opinions on tele-learning and university-corporate relations.”

The committee found that administrators had, for example, imposed a new requirement that the chair represent the university, which is inconsistent with freedom to criticize the university — a basic tenet of academic freedom.

Administrators also refused to clarify the perception, stemming from messages exchanged between individuals, that a key reason for blocking Noble’s appointment was the very reason faculty felt he was qualified — his outspoken criticism of university-corporate relations and online education.

The report recommended SFU renew its invitation to Noble, but university officials disputed the report’s

findings, saying the university’s appointment process had worked properly.

Noble, in the meantime, filed a lawsuit against SFU.

No settlement terms were released and Noble said he is prohibited from discussing the deal, but glad the long legal fight is over.

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